MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement is entered into by and between:

The **PARTIDO STATE UNIVERSITY**, an educational institution duly organized and existing under Philippine laws with its principal office at San Juan Bautista St., Goa, Camarines Sur, herein represented by its University President, **DR. ARNEL B. ZARCEDO**, hereinafter referred to as **THE GRANTEE**.

– And –

CAMP ISAROG WORLD WAR II HEROES' DESCENDANTS FRATERNAL SOCIETY, INC., shortly called ***Camp Isarog Fraternal Society, Inc.*** or **CIFS,** a SEC-registered private organization of the descendants of World War II guerillas recognized under the command of Col. Teofilo Padua with its principal office at the residence of Job C. Arel, located at 257 Rodriguez St., Goa, Camarines Sur, and duly represented in this act by its Interim President, **ATTY. EDUARDO P. PILAPIL**, hereinafter referred to as a **THE GRANTOR**.

The Grantee and The Grantor are hereinafter referred to collectively as the "Parties" and singularly as the "Party."

WITNESSETH:

WHEREAS, The GRANTEE is a duly recognized and accredited higher education institution (HEI) that pioneers cultural and historical research programs, projects and activities in Partido Area; as the sole university in the fourth district of Camarines Sur, its community engagement involves — but is not limited to — the documentation, maintenance and preservation of the natural, historical, socio-cultural, religious and artistic heritage of the district and the entire Bicol Region.

WHEREAS, THE GRANTOR is a non-government association of the World War II descendants of guerrilla veterans/heroes, aimed to preserve, promote, perpetuate and pass on to the succeeding generation of descendants the patriotic legacies of our ancestor-heroes who were part of the resistance movements based in Camp Isarog, Bicol Region, during the Second World War.

WHEREAS, THE GRANTEE is cognizant of the aims and purpose of THE GRANTOR in preserving and passion on to the next generations the patriotic legacies of our local heroes.

WHEREAS, THE GRANTOR recognizes the capacity of and requests THE GRANTEE to conduct a research on the World War II guerillas of Partido under the command of Col. Teofilo Padua and their descendants and produce a book on the same, with allotted budget for the conduct of documentation, writing, and publication of the book.

WHEREAS, THE GRANTEE shall conduct a research project whose output is initially entitled "*A Generation of Chaos and a Generation of Peace: The Lives of Local Heroes and Their Descendants*," derived from the fund allocated by THE GRANTOR.

NOW THEREFORE, for and in consideration of the above premises and their mutual agreement herein set forth, the Parties agree as follows:

ARTICLE I
PURPOSE

The purpose of this Memorandum of Agreement (MOA) is to provide a framework of cooperation between the Parties; determine specific working arrangements, conditions, and modalities within which the Parties will collaborate to achieve their common goal of documenting the heritage of Partido Area; establish a communication channel with the end view of effective cooperation in matters of common interest, particularly in the implementation of the aforesaid project.

ARTICLE II
DESCRIPTION AND OBJECTIVES OF THE PROJECT

The parties agree that they will closely collaborate and consult one another on matters relative to the collection of documents and oral narratives related to the World War II guerillas recognized under the command of Col. Teofilo Padua within Partido and nearby localities, and in the writing and production of a printed book on the subject written for general readership.

ARTICLE III
RESPONSIBILITIES OF THE PARTIES

The Parties, subject to the terms of this Memorandum of Agreement and the laws, rules, regulations, and policies from time to time enforced in each of the Parties, will collaborate the mapping of the related tangible and intangible materials, and the writing of the book with the following responsibilities:

The Grantee shall:	**The Grantor** shall:
• Provide the researchers for the project requested by the Grantor, namely: • Dr. Maria Aurora G. Caballero • Mr. Charlie V. Balagtas • Mr. Raymond R. Estrada • Present the research proposal and cost estimates of the project from the preliminary phase to the publication phase.	• Provide the agreed-upon budget amount of **Php. 250,000** for the study, released in four tranches: • 25% upon the signing of the MOA; • 50% upon the submission of a mid-term status report; and • 25% upon the submission of the book manuscript that is ready for printing.
• Conduct data collection. • Provide a quarterly report on the progress of the project. • Submit a mid-term status report of the project. • Validate the content and submit the final report.	• Assist the grantee by providing the official roster of the guerillas and accompanying the researchers to the location of the known descendants of the guerillas. • Suggest other activities that may fast-track the development of the study. • Arrange the venue and food for meeting reports. • Cross-validate the report submitted by the researchers.
• Develop the manuscript of the book. • Recommend the structural and style editor of the book. • Incorporate the Grantor's suggestions on the content. • Submit the final manuscript of the book for publication within the agreed time frame.	• Provide feedback on the content. • Hire an external editor for structural editing, copy editing, proofreading, and style editing.

ARTICLE IV
CONFIDENTIALITY AND PROTECTION OF INTELLECTUAL PROPERTY RIGHTS

4.1 The Grantee reserves the right to incorporate the feedback and suggestions of the Grantor for the purpose of organizing and improving the content of the book.

4.2 The Grantee and the Grantor share the right to keep all photos, documents, audio and video recordings gathered for this project, unless agreed upon by the two parties for other purposes it may serve.

4.3 The Grantee shall not be liable to the Grantor or any third party for damages, including lost profits, lost savings, complaints, claims, litigation or other incidental, consequential or special damages that may arise from this work.

4.4 The researcher-authors of the book have shared copyright and ownership rights with the Grantor.

ARTICLE V
EFFECTIVITY AND DURATION OF THE PROJECT

5.1 This MOA shall be effective for a period of **one year (March 2024 to March 2025)** from the date of final signature unless extended under mutual approval of the parties.

5.2 This MOA may be terminated by either one of the parties within 30 days after notice in writing to the other party and may be subject to modification upon mutual consent of the parties.

5.3 Deliberate disregard of the terms and conditions of this agreement shall result in the automatic revocation or cancellation of the same without prejudice to the application of the measures as provided for under applicable laws.

5.4 This agreement may be suspended or modified in cases of force majeure or other justifiable grounds.

ARTICLE VI
REPRESENTATION AND WARRANTIES

Each party hereby represents and warrants that:

6.1 It can perform its obligations for the full and successful implementation of the program.

6.2 It will at all times exercise due diligence in the performance of all its obligations so as not to unnecessarily expose itself, the program, and the other party to any liabilities whatsoever.

6.3 It will provide sufficient personnel at all times to effectively carry out its obligations under this MOA during the conduct of the research, writing, and printing of the book.

6.4 It has full right and capacity to deliver and perform its obligations under this MOA and the transactions contemplated hereby, in accordance with the terms of the MOA.

ARTICLE VII
MISCELLANEOUS PROVISIONS

7.1 Modifications within the MOA implementation shall be made by mutual consent of the parties through the issuance of a written modification, signed and dated by all parties, before implementation of the changes.

7.2 The research study implementation in no way restricts the Grantee and Grantor from participating in similar activities with other public or private agencies, organizations, or individuals.

7.3 Each party agrees to hold harmless the other party from and against any and all liabilities, losses, damages, claims, suits, and expenses, including legal expenses, of whatsoever nature and kind imposed upon, incurred by, or asserted against it and/or its agents' employees, successors, and assignees relating to or arising out of the partnership between the parties.

7.4 In the event of any inconsistency between the provisions of this MOA and any documentation presently existing between the parties, the provisions of this MOA shall, as between the parties, prevail.

7.5 This MOA shall be governed by and construed in accordance with the laws of the Republic of the Philippines.

ARTICLE VIII
REVISION, MODIFICATION, AND AMENDMENTS

8.1 This MOA may be revised, modified, or amended in whole or in part, by consensus of the Parties. Any revision, modification, or amendment agreed upon by the Parties shall be in writing and shall form part of this MOA. Such revision, modification, and amendment shall come into effect on such dates as may be determined by the Parties.

8.2 Any revision, modification, and amendment shall not affect the rights and obligations arising from this MOA before or up to the date of such revision, modification, and amendment.

8.3 The Parties likewise warrant that they are duly authorized by law to enter into this memorandum of agreement.

ARTICLE IX
REFERRAL TO ALTERNATIVE DISPUTE RESOLUTION

Should any dispute arise with respect to the implementation or interpretation of any provision herein, parties agree to refer the same first to any of the modes of settling issues under the Alternative Dispute Resolution Act of 2004 or RA 9285.

ARTICLE X
TERMINATION OF CONTRACT

Any party hereto may terminate this *Memorandum of Agreement* by sending notice of such intention to the other party thirty (30) days prior to the effectivity thereof should there be a breach of any provision herein.

ARTICLE XI
VENUE FOR JUDICIAL CLAIMS

Should any dispute remain unresolved after referral to any of the modes of settling issues under the Alternative Dispute Resolution Act of 2004 or RA 9285, parties agree to elevate and lodge the same before the regular court having jurisdiction over the Partido State University, Goa, Camarines Sur and over the dispute concerned.

ARTICLE XII
ADHERENCE TO THE INTELLECTUAL PROPERTY LAW

Parties agree to strictly adhere to the provisions of the Intellectual Property Law with respect to any intellectual product generated under and by virtue of this Memorandum of Agreement.

IN WITNESS WHEREOF, the parties have hereunto set their hands this _____day of _____ at _____.

Signed by:

For and on behalf of
PARTIDO STATE UNIVERSITY
(THE GRANTEE)

ARNEL B. ZARCEDO, EDEL
SUC President III
Date: _____

Signed by:

For and on behalf of
CAMP ISAROG FRATERNAL SOCIETY, INC. (THE GRANTOR)

ATTY. EDUARDO P. PILAPIL
Interim President
Date: _____

Signed in the presence of:

For and on behalf of
PARTIDO STATE UNIVERSITY
(THE GRANTEE):

PATRICIA M. CANDELARIA
VP for Research, Extension,
and Knowledge Management
Date: _____

MARIA AURORA G. CABALLERO
CED Faculty/Project Leader
Date: _____

CHARLIE V. BALAGTAS
VP for Administration and Finance/
Researcher
Date: _____

RAYMOND R. ESTRADA
CED Faculty/ Researcher
Date: _____

Signed in the presence of:

For and on behalf of
CAMP ISAROG FRATERNAL SOCIETY, INC. (THE GRANTOR):

JOB C. AREL
Vice President
Date: _____

EDNA C. NARON
Secretary
Date: _____

ROSA A. PRIMO
Treasurer
Date: _____

LORENZO L. PADUA
Business Manager
Date: _____

ACKNOWLEDGEMENT

Republic of the Philippines)
City/Mun. of _____) S.S.

BEFORE ME, A NOTARY PUBLIC for and in _____, Philippines, on this ____ day of _____ 2024, personally appeared:

Name	Government-Issued ID	Place Issued	Date Issued
ARNEL B. ZARCEDO			
EDUARDO P. PILAPIL			

Known to me to be the same persons who executed the foregoing instrument and they acknowledge to me that the same is their free and voluntary act and deed as well as that of the corporations/entities they represent.

The foregoing, which refers to the Memorandum of Agreement entered into by the PARTIES consists of four pages including this page wherein this acknowledgment is written and has been signed by the parties and witnesses on all pages.

WITNESS MY HAND AND NOTARIAL SEAL on the date and place above written.

Doc. No. _____
Page no._____
Book No. _____
Series of 2022